



Response to Request for Information (RFI) on the Development of an Artificial Intelligence (AI) Action Plan

Thank you for the opportunity to comment on the Administration's efforts to ensure America's global leadership in artificial intelligence. We commend the White House Office of Science and Technology Policy (OSTP) for seeking public input on the Artificial Intelligence (AI) Action Plan, which seeks to foster innovation, promote human flourishing, and maintain U.S. competitiveness in AI.

Below, we outline a set of recommendations focused on strengthening the Department of Health and Human Services (HHS)—particularly the Food and Drug Administration (FDA)—to maximize AI's benefits, address associated risks, and support the Administration's vision for American AI leadership. We welcome the opportunity to collaborate with OSTP on ensuring that AI improves the health and wellbeing of all Americans, and we would be delighted to discuss our proposals with you further.

About 1Day Sooner

1Day Sooner is a philanthropically funded non-profit that leads campaigns in science, policy and ethics to advance medical innovation to combat the most harmful diseases.

Recommendations

AI stands poised to not only revolutionize healthcare but also transform every aspect of HHS, offering unmatched opportunities to enhance patient outcomes, streamline administrative functions, bolster safety surveillance, and drive biomedical innovation. To realize these



advantages, a robust foundation that includes workforce development, data readiness, regulatory refinement, and staff engagement must be in place. At present, much of the federal workforce lacks specialized AI expertise, creating adoption delays that may hinder progress and compromise America's global AI leadership. This moment represents a critical opportunity for the Administration to affirm its commitment to advancing AI capabilities by providing strategic resources, leadership, and clear operational guidance under its AI Action Plan.

Recommendation 1: Establish an AI Corps within HHS to accelerate the integration of AI across its agencies

To unlock AI's full potential within HHS, an AI Corps should be created to provide specialized expertise across the Department's ten agencies. HHS is uniquely positioned for this investment, as it delivers critical healthcare services to millions of Americans and manages extensive healthcare data, oversees drug and device development, and addresses areas like healthcare fraud. Modeled after the Department of Homeland Security's AI Corps, this program would recruit top-tier professionals in AI, machine learning, data science, and data engineering, who would bring the specialized knowledge necessary to integrate AI tools safely and effectively, optimize processes, and drive innovation within each agency. While current initiatives like the HHS AI Council and AI Community of Practice provide strategic guidance, they lack the capacity for hands-on, agency-level implementation. By embedding dedicated AI practitioners in each agency, HHS would move beyond high-level planning toward meaningful AI adoption, thereby fulfilling the intent of both the Executive Order and the proposed AI Action Plan.

This policy recommendation was developed as part of the Federation of American Scientists (FAS)'s Day One Project (full memo available [here](#)).

Recommendation 2: Strengthen the FDA's Regulatory Capacity through AI

The pharmaceutical industry commonly cites review delays and limited interactions with the FDA as significant bottlenecks in drug approval processes. Although user fees can help fund



additional staff, a more lasting and impactful solution lies in improving existing reviewers' efficiency through AI. Proper integration of AI could expedite reviews, reduce costs, and yield faster patient access to innovative therapies. The following recommendations detail complementary steps to facilitate AI's integration into FDA operations while preserving high regulatory standards.

The following policy recommendations were developed for the Clinical Trials Abundance project, a partnership between the Institute for Progress (IFP) & Renaissance Philanthropy, and presented at a policy workshop on October 7th, 2024 (full memo available [here](#)).

Recommendation 2.a: The FDA Should Prioritize Data Readiness for AI Integration

To prepare for seamless AI integration, the FDA must prioritize organizing its internal data systems with robust access and permission hierarchies. This will ensure that sensitive regulatory data is properly structured, accessible, and secure for future AI training and utilization. AI tools, particularly those designed for regulatory tasks, depend on clean, well-organized data to perform effectively. By categorizing and tagging datasets with clear access controls, the FDA can ensure that AI models are fine-tuned for specific regulatory needs while maintaining the highest standards of data security and privacy. This will also guarantee the confidentiality that sponsors expect from the FDA.

Recommendation 2.b: The FDA should Conduct an FDA Reviewer Benchmark Test

A formal benchmark test, led by the FDA's Office of Digital Transformation and the Center of Excellence in Regulatory Science and Innovation (CERSI), should evaluate how AI-assisted reviews compare to those conducted by human reviewers. This test could apply AI tools to past submissions that have already received approval, thereby helping the FDA understand how AI may influence review quality and speed. Publicizing the results would promote trust, demonstrate the FDA's commitment to scientific rigor, and offer a clear indication of whether AI meets the agency's standards for accuracy and thoroughness.



Recommendation 2.c: The FDA should publish a report on AI procurement guidelines

The FDA should publish and share with Congress a report on AI procurement practices, specifying whether advanced AI tools such as large language models are accessible for FDA reviewers. Congress may mandate such a report, but even in the absence of such a mandate, the FDA should conduct such an assessment and publish its findings in a report. This report would reveal any existing gaps and propose practical reforms to streamline AI procurement. By addressing issues that impede the acquisition of cutting-edge technologies, the FDA can equip its reviewers with the tools necessary to make regulatory processes more timely and robust.

Recommendation 2.d: The FDA should Foster AI Adoption through Targeted Reviewer Engagement

The FDA should proactively engage its reviewers in structured AI workshops and training sessions to familiarize them with emerging and available AI technologies. These sessions would help reviewers better utilize AI tools in regulatory processes and strengthen collaboration between AI experts and regulatory staff, ensuring that new tools are developed with direct input from reviewers. By building staff confidence in the capabilities of AI, these workshops would lay the groundwork for broader, more effective AI integration throughout the agency. Initially, external experts could lead these efforts, ensuring timely exposure to best practices. If established, the AI Corps could take on this role, deepening collaboration and accelerating AI integration across the agency.

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